Submission

to the Joint Standing Committee on

Electoral Matters

Inquiry into the 2025 Australian Election

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Brisbane

This submission offers advice on two matters:

A: The composition of the Parliament as a whole, including: the length of the parliamentary term; the potential for fixed terms; and the number of elected representatives; and

B: Potential reform of safety and security arrangements, and an assessment and review of the purported increase in aggressive behaviour at polling booths

Part A:

- *The composition of the Parliament as a whole, including: the length of the parliamentary term; the potential for fixed terms; and the number of elected representatives.*

i) The length of the parliamentary term, and fixed terms

I argue **FOR** the maintenance of a (maximum) three-year, unfixed parliamentary term for the House of Representatives, and for a six-year term for the Senate, with rotational election for 40 of that chamber's 76 members every three years. It is true, however, that among about 190 legislatures around the world, more than half boast five-year legislative terms; around 40 per cent 4-year terms and only six – including Australia and New Zealand) enjoy 3-year terms (https://www.aph.gov.au/About_Parliament/Parliamentary_departments/Parliamentary_Library/Research/FlagPost/2024/April/4YearTerms). Australia and New Zealand are therefore outliers not only in our region but globally. However, there are sound reasons why Australia should remain an outlier.

First, it is useful to identify the usual arguments for fixed, four-year parliamentary terms:

a) The first – which is so often repeated it has almost become folklore – is that governments (especially but not exclusively freshly elected ones) – spend the first year of the parliamentary triennium "bedding down" their legislative agenda while also confirming factional allegiances (in cabinet and in caucus) among new and existing members, as well as forging or re-forging relationships with the public service, pressure and community groups, and the news media. It is implied that the third year of the term is spent in campaign mode, with members allegedly more interested in electorate work and public relations than a legislation. But evidence does not support this out: in 2024, the Albanese Labor Government passed 140 bills, including 30 in a flurry of activity at year's end. In short, the first and third years of any parliamentary terms can be – and often are – hives of legislative activity.

b) A second argument – one for fixed parliamentary terms – is that allowing a prime minister to call an election at her or his own choosing provides incumbent parties with an unfair electoral advantage given the PM can renew his or her mandate at an earlier moment when their electoral stocks are high. There is some evidence of this in Australian history, most memorably in 1955 under Liberal PM Robert Menzies, and 1984 under Labor PM Bob Hawke. However, since both major party blocs – Labor and the Coalition – enjoy this privilege, any partisan advantage is neutralised. The prerogative of the PM to advise the Crown to dissolve the lower house of parliament is a legacy of the reforms of the British parliament after 1688. It has therefore been a cornerstone of the Westminster conventions, and there is no sound reason to abandon it other than to align Canberra with

the Australian states, all of which have fixed parliamentary terms.

c) A third argument, and related to the above, is that the business community demands certainty, as shorter terms – and the possibility of a mid-term election and potential change of government – is allegedly perilous to business investment decisions. Again, this is specious: Australian commerce has prospered under unfixed, three-year terms for 125 years, and there is no hard evidence of any tangible disadvantage, or that fixed, four-year terms would increase business certainty.

d) A fourth argument is more compelling: data gleaned from the 2025 Australian Election Study reveal 42 per cent of Australians would support four-year terms in any referendum, with 30 per cent opposed, and 28 per cent of no opinion. (https://australianelectionstudy.org/wp-content/uploads/The-2025-Australian-Federal-Election-Results-from-the-Australian-Election-Study.pdf). However, this is a plural and not an absolute majority. But we must question the reasons for new-found support given a 1988 referendum saw support for four-year terms fall below 33 per cent, with the proposal failing in every state. Those reasons may well include a weariness of electoral participation – the 2022-25 parliamentary term also contained a referendum – and a perception of voting as an increasingly onerous obligation that could be (allegedly) more conveniently performed every four years than every three. Reasons might also include irritation over a leader's ability to "play politics" with election timing. The Queensland referendum of 2016 to extend that state's terms from three to four years, for example, was successful, winning 53 per cent support, and it occurred at a time when the then-Liberal PM Malcolm

Turnbull was perceived to be "playing politics" with his own election timing.

However, for the following reasons, I argue the Australian House of Representatives term remain a maximum of three years, with election dates remaining the sole prerogative of the PM.

a) Adding an extra year to the parliamentary term adds another year to (admittedly, checked) executive (cabinet) authority. Despite the growth in cabinet power and attendant regulation / ordinance / subordinate legislation / ministerial directives, Australia remains a Westminster parliamentary democracy, with sovereignty (checked only by the electorate and the High Court) designed to supersede the executive. The corollary is that four-year terms are a double-edged sword: governments enjoy the extended freedom, but that extended freedom from electoral accountability can also extend executive arrogance.

b) Related to the above, a second reason is that Australians – already mistrustful of politicians and political institutions (according to the 2025 AES, 68 per cent believe politicians "look after themselves"; just 32 per cent "trust" MPs) – will likely build resentment towards unpopular governments if their opportunity to remove said governments is curtailed. After two years of unpopular and / or poor government, the extremely disgruntled voter might be more likely to engage in anti-democratic practices (e.g. vandalism or violence) if they feel an election is "too far away". In short, three-year terms offer a more regular pressure-cooker valve to release pent-up voter hostility and is, in sum, healthier for democratic expression. This is especially the case in a politically polarised and post-truth social media age fuelled by conspiracy theories.

c) A third argument, again related to the above, is that an eight-year term (necessitated by a lengthening of the House term) for Senators is excessive, notwithstanding eight-year terms already existing for legislative councillors in New South Wales and South Australia. As above, voters are unlikely to welcome a reform that reduces rather than extends electoral accountability.

d) A less widely considered argument for maintaining three-year terms is related to Australian federalism. Australia's federal model, designed in the late 1890s by colonial premiers and others, remains the cornerstone of our Constitution. It was deliberately chosen in recognition of Australia's regional differences across geography, economy and demography to produce a delicate balance between the needs of the centre (first Melbourne, then Canberra) and the needs of the periphery (the states and territories). By its very nature, federalism ensures that what occurs in Canberra does not automatically occur in the states and territories, and vice versa. The rationale is that diversity is healthy in a federal arrangement, and that – with Canberra and the states and territories often at odds – a sturdier Australian democracy is produced. This argument undermines the thesis that Australia would be better served by having the national parliament fall into line with the states and territories. I instead argue that having a point of contrast between Canberra and the states and territories strengthens out democracy as it further prevents any overlap of prevailing electoral moods. The very worst outcome would be, for example, having all local, state and territory, and federal (House and Senate) elections scheduled on the same day every four years. Such a scenario invites the very unpalatable possibility of having all tiers of government – and both houses at state and federal level – dominated by the same political party, simply because that party is performing well in opinion polls. In short, it is healthy that Canberra and the states and territories sometimes "do" politics and policy differently.

ii) The number of elected representatives

The numerical size of state, territory or national legislature is a sensitive topic around Australian barbecues. The popular, if uninformed, view is that "Australia has too many tiers of government, and too many (expletive) politicians with their snouts in the (publicly-funded) trough". The paradox is those same voters often complain of the alleged difficulty of obtaining an opportunity to speak to their local MP, and that "you never see a politician unless it's election time".

I therefore argue a significant expansion of the House of Representatives is not only due but overdue. In short, more representation equals *better* representation.

The last significant expansion of the House arrived in 1984, when the House grew from 125 to 148 members. In 1984, there were 9.9 million electors enrolled to vote, or approximately 67,000 voters per federal division. Today, there are 18 million enrolled electors across 150 seats – approximately 120,000 voters per division. Given major improvements in telecommunications over the past four decades – email, mobile phones, social media, online video calls – it could be reasonably argued that today's MP can more than adequately represent more than 67,000 voters. Moreover, if we apply the 1984 formula to today's enrolment, the House of Representatives would need to be expanded to 268 seats – clearly an untenable figure that would never be publicly accepted.

I therefore recommend the establishment of a benchmark – to be observed at all electoral redistributions going forward – of 100,000 electors (or as near as practicable) per federal division, withstanding Tasmania's five seats, the maintenance of which are constitutionally protected. On Australia's current population, this formula would expand the House to 180 seats – an increase of 30 – a figure more likely to be publicly accepted.

Section 24 – the "Nexus" provision

The opening statement of s.24 of the Australian Constitution (the "nexus" provision) reads "The House of Representatives shall be composed of members directly chosen by the people of the Commonwealth*, and the number of such members shall be, as nearly as practicable, twice the number of the senators* [emphasis added].

In short, a substantial increase in the size of the House requires a proportionate increase in the size of the Senate. In 1984, for example, the Senate was increased from 64 to 76 (from 10 per state and two per territory to 12 per state and two per territory).

This expansion reduced the quota for the election of a senator in a state, via the *Droop formula*, from 16.7 per cent to 14.3 per cent which, in turn, made it easier for minor and micro party candidates to be elected. If we were to expand the Senate to meets the needs of an expanded House (to 180) and to satisfy s.24 of the Constitution, we would need to expand the Senate to 88 Senators (14 from each state and two from each territory). Quite apart from the fact few Australians would find this an acceptable number, such an expansion produces

the very problematic result of lowering the quota for election at a regular half-Senate poll to 12.5 per cent and, at a Double Dissolution, to just 6.25 per cent – a figure so low that unrepresentative – even anti-democratic – fringe-dwellers are likely to occupy the Senate's cross-benches.

To allow Australia to continue to grow the House late into the 21st century and beyond, I strongly urge bipartisan support for a referendum to remove the "nexus" provision, notwithstanding a referendum's failure in 1967 to do so.

Part B

- *Potential reform of safety and security arrangements, and an assessment and review of the purported increase in aggressive behaviour at polling booths*

Australian politics, like those across the liberal-democratic world, are increasingly polarised. Post-truth "news" outlets, "fake news" mills and social media have also fuelled extremist politics, especially on the far right, that often advocate disruptive or even violent protest.

By global standards, Australia remains comparatively peaceful during election campaigns and at polling stations. Indeed, confrontations between party workers, such as during the November, 2025, Hinchinbrook state by-election in Queensland, are so rare as to attract wide news coverage when they occur. However, there is no guarantee Australian voters and campaign workers will continue to be shielded from future violence.

To this end, I make two recommendations:

a) That a ban be enacted to prevent party workers from positioning campaign materials – corflutes, bunting etc – the night before polling day(s). There should also be a prescribed limit to the length of campaign bunting, and on the number of corflutes, each candidate is allowed to position on any given polling day. Only in this way can we ensure sought-after "fence space" is shared equitably to prevent inter-party hostility.

b) To further prevent anti-social behaviour between rival party workers – or between campaigners and voters – at polling booths, I recommend parties

and candidates provide returning officers with a list of names of those performing party duties (handing out how-to-vote cards, scrutineering, etc) in advance of polling day. Only those on a returning officer's list of approved campaign workers shall be allowed to participate in campaign activities. It is also advised that party workers be required to wear name tags (of first names only) so aggrieved voters or party workers can identify aggressive campaigners. In the unlikely event Australia develops a culture of violence at polling booths, it is recommended campaign worker lists be preceded by criminal background checks. However, this appears unnecessary in the short to medium term.

Ends.